Harbor Point Mutual Auto Insurance

Bodily Injury Unit

Claim Notes

Claim number:	C-1009
Claimant:	David May
Adjuster:	Chelsea Hebert

December 5, 2023
Reported a left-turn collision at an intersection this morning. The other driver, who is named on our policy, says they were struck while the insured was turning across their path.

January 18, 2024
Claimant is represented by counsel, who has asked that all contact go through their office. Sent the acknowledgment letter and opened a bodily injury file alongside the property damage file.

March 26, 2024
Obtained statements from two independent witnesses, both of whom describe the same sequence of events the driver gave. Police report confirms the claimant was in the vehicle at the time of impact.

April 15, 2024
Photos from the scene and the vehicles are consistent with the impact described. Damage to the front of the claimant's car lines up with the other vehicle's rear quarter panel.

April 18, 2024
Estimate is in and the bulk of the damage fits the force of a side impact of this type. Appraiser flagged a structural area that appears to have been repaired before, and I have asked for the prior repair records.

May 9, 2024
Prior claim history shows an earlier accident to the same vehicle, which was never reported to us or to the prior carrier. The same major damage appears in the records from that event and is now being presented as new.

May 10, 2024
Spoke with the claimant's attorney, who confirmed the client's account of the crash and provided medical notes. The claimant has given the same description in every conversation so far, and there is no sign that the coverage period began after the loss.

June 6, 2024
Medical records describe neck pain and stiffness consistent with whiplash from this kind of impact. No earlier problems with the same area of the body appear in the records we have.

July 9, 2024
Treatment followed a typical course, with physical therapy tapering off as the claimant improved. The physician's latest note indiactes the claimant is nearly back to normal and expects to be discharged soon.

July 22, 2024
Reviewing the prior repair records against the current estimate before I make a decision on the property damage. Will confirm the overlap with the earlier accident with the appraiser and the attorney before setting a settlement position on either the vehicle or the injury claim.

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Bodily Injury Unit

Recorded Statement

Claim number:	C-1009
Statement of:	David May
Taken by:	Chelsea Hebert
Date:	December 8, 2023

Q: Thank you for taking the time to speak with me today. This recorded statement concerns the collision you reported. Please state your full understanding of what happened.

A: I was driving through an intersection in Pearland, Texas, and I was turning left. I had a green light, or at least I thought I did when I started to turn. Then a vehicle coming the other way hit the front passenger side of my car.

Q: Had you come to a complete stop before beginning the turn?

A: No, I was moving slowly through the turn, maybe ten or fifteen miles an hour. I was watching for oncoming traffic, but the other car came in faster than I expected.

Q: Were there any other vehicles involved or any witnesses you are aware of?

A: No other vehicles that I saw. A man in a pickup stopped afterward and asked if I was okay, but I didn't get his information.

Q: Did you seek medical attention after the collision?

A: Yes, I went to an urgent care clinic that same afternoon. My neck was stiff and sore right away, and by the next morning I had pain running into my shoulders and a headache. They diagnosed me with whiplash and gave me a neck brace and some muscle relaxers.

Q: Are you still experiencing symptoms?

A: Yes. Turning my head to check mirrors hurts, and I have trouble sleeping. I've been going to physical therapy twice a week.

Q: Thank you. Is there anything you would like to add or correct in your account?

A: Only that I want to make sure it's clear I wasn't speeding. I was being careful.

Q: Thank you. This concludes the statement.